

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 20
JUDICIAL OFFICER: MELISSA O'CONNELL
HEARING DATE: 09/17/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter.
(Local Rule 3.43(2).)

Note: In order to minimize the risk of miscommunication, parties are to provide an EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED. Dept. 20's email address is: dept20@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 20 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling must be attached to the proposed order when submitted to the Court for issuance of the order.

Discovery Law & Motion

1. 9:00 AM CASE NUMBER: C23-00676
CASE NAME: NADIA HAMADE VS. HELGE THEISS-NYLAND
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTEROGS, SET 2
FILED BY: HAMADE, NADIA
TENTATIVE RULING:

The Plaintiff's Motion to Compel further responses to Special Interrogatories (Set 2) is GRANTED IN PART and DENIED IN PART. Plaintiff's request for sanctions is GRANTED, but the sanctions have been reduced to a reasonable amount.

Plaintiff provided Defendant with 55 special interrogatories. In their initial response, Defendant provided objections only. However, Defendant has supplemented their responses since the filing of Plaintiff's Motion to Compel. This court reviewed all of Defendant's supplemental responses and orders the following:

The court orders supplemental responses to Special Interrogatories Nos. 132, 146, 165, 166, 168, and 174. No further responses are ordered in the remaining Special Interrogatories as the court

finds Defendant's supplemental responses to be code-compliant responses.

Special Interrogatory No. 132: Defendant provided supplemental responses with the years of experience for the listed individuals but failed to indicate the educational background for them; the answer did not address the entire prompt.

Special Interrogatory Nos. 166 and 174: Defendant provided supplement responses however, they indicated that they "agree to produce" specific documents not that they have in fact provided Plaintiff with these documents to make the response code-compliant.

Special Interrogatory No. 165: Defendant provided objections only to the request to identify each person who was responsible for engaging in the interactive process with employees who requested reasonable accommodations during the relevant time period. The court finds Defendants objections to be without merit. The terms in this request were defined by Plaintiff in their initial discovery request and are therefore not vague, ambiguous or overly broad. Ambiguity is a valid objection only if it precludes an intelligent reply, which here, it does not. (*Cembrook v. Superior Court* (1961) 56 Cal.2d 423, 430.) The court also finds the request to be relevant to Plaintiff's claims in this case to the extent that it helps identify individuals who had some role in the accommodations process with Defendant's business. Finally, while the court appreciates Defendant's objection as to third-party privacy rights, in re-reviewing Plaintiff's request, it is simply asking for the identity of the persons who are on the business side of engaging in the interactive process and does not appear to be asking for the names or other details of the individuals with the business who would be *seeking* any accommodations. The latter this court would agree would trigger third party privacy rights.

Special Interrogatory No. 168: Plaintiff sought a description of any complaint or concern Plaintiff herself raised to Bay City Mechanical during the relevant time period: (a) failure to pay commissions or bonuses as outlined in her offer letter; or (b) failure to reimburse business expenses. Defendant provided objections only. The court finds Defendant's objection to be without merit. The request is not overly broad, vague or ambiguous, it does not appear to trigger any attorney-client privilege communications, especially without a privilege log, as its seeking Plaintiff's complaints and concerns, and finally because it only asks for Plaintiff's complaints it does not implicate the privacy rights of third parties.

As to Plaintiff's other requests, the court disagrees with Plaintiff's position and finds that supplemental responses are not required. Specifically, Plaintiff raises Special Interrogatory No. 122 as being incomplete due to Defendant's responses to Nos. 132 and 161. A party's belief that a response is *not good enough* is not a basis for issuing a motion to compel. (See e.g. *Holguin v. Superior Court* (1972) 22 Cal. App. 3d 812, 820 ["Plaintiffs' position in this proceeding is therefore, in effect, that certain matters which defendants have denied are so unquestionably true, that they cannot deny them. It may well be that from their point of view defendants might be better off, in the long run, if instead of denying all the requests outright, they had denied some of

them for lack of information or belief. It may also be that after a trial it will appear that plaintiffs are entitled to financial sanctions under subdivision (c), section 2034 of the Code of Civil Procedure. We do not see, however, how any court can force a litigant to admit any particular fact if he is willing to risk a perjury prosecution or financial sanctions.”].) If Defendant fails to provide certain information in some requests and not others this court cannot force them to do otherwise and Defendant can anticipate the consequences of not fully answering interrogatories when litigation comes about.

Here, the court finds sanctions appropriate. Pursuant to California Rule of Court Rule 3.1348, subdivision (a), “[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though ...the requested discovery was provided to the moving party after the motion was filed. The court does not find any substantial justification for Defendant not providing the requested discovery during the initial request. However, the court does find that supplemental responses have been provided and a majority of which are code-compliant, therefore the court finds the requested amount to be unjust. The court orders Defendant to pay sanctions in the amount of \$500.

2. 9:00 AM CASE NUMBER: C23-00676
CASE NAME: NADIA HAMADE VS. HELGE THEISS-NYLAND
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD, SET 2**
FILED BY: HAMADE, NADIA
TENTATIVE RULING:

Plaintiff’s Motion to Compel further responses to Requests for Production, Set 2 is GRANTED IN PART and DENIED IN PART. Plaintiff’s request for sanctions is GRANTED, but reduced.

Plaintiff provided Defendant with 43 Requests for Production (Nos. 71-113), in Set Two. Defendant’s initial responses were objections only with no substantive responses. Subsequently, Defendant maintains they served substantive supplemental responses to all 43 requests on September 2, 2026.

The court reviewed all 43 responses by Defendant and ORDERS further responses to Requests for Production Nos. 77, 88, 89, 91, 92, 93, 97, 98, 99, 100, 101, 102, 104, 105, 106, 107, 110, 111, 112, and 113.

Request No. 77: Defendant maintains that no documents ever existed in response to this request but fails to indicate that a diligent search was conducted to make that determination (whereas they did report such a search in Nos. 78-79, 83, 90.) (See Cal. Code of Civ. Proc. § 2031.230: A representation of inability to comply affirms a diligent search and reasonable inquiry, specifies why (never existed, destroyed, lost, stolen, or not in the party's control), and names any person believed to have the item.)